Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1242
Claimant:	Paul Padilla
Adjuster:	Valerie Rodriguez

9 May 2024 - Received first notice of loss for a left-turn collision at an intersection. Insured reports the other vehicle struck the rear quarter panel as the insured completed a left turn on a green arrow. Police report requested. Both drivers stated no injuries at scene.

16 May 2024 - Claimant's representation letter received. Counsel has requested that all communications be directed to their office. Claimant now reports lower back strain following the collision and has been advised to seek medical evaluation. Medical authorization forms sent to counsel.

23 May 2024 - Reviewed scene photographs and damage estimate. Impact area consistent with a left-turn collision. Rear quatrer panel and passenger door damage noted on claimant vehicle. Liability appears to be disputed by counsel, who contends the insured failed to yield to oncoming traffic. Traffic signal timing records requested from the municipality.

24 May 2024 - Received treating physician's initial report. Diagnosis is lumbar strain with physical therapy recommended. Counsel has submitted a demand package and requested a review of the injury claim. Medical records reviewed. Injury appears soft tissue in nature, consistent with the mechanism of impact described in the police report.

2 Jun 2024 - Spoke with defense counsel regarding liability position. Signal timing data obtained, showing the insured's green arrow phase was active at the time of impact. Liability assessment upadted to favor the insured, subject to review of witness statement. Bodily injury reserve reviewed and adjusted. File remains open pending completion of treatment and final demand evaluation.

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Recorded Statement

Claim number:	C-1242
Statement of:	Paul Padilla
Taken by:	Valerie Rodriguez
Date:	13 May 2024

Q: Thank you for taking the time to speak with me today. This recorded statement concerns the collision you reported while turning left in Sugar Land, Texas. Do you understand that this call is being recorded?

A: Yes, I understand.

Q: Please state where you were coming from and where you were headed when the accident happened.

A: I was coming back from the grocery store and heading home. I was making a left turn off the main road into my neighborhood.

Q: What was the traffic like at the intersection?

A: It was moderate. There was a car coming toward me in the opposite lane, and I thought I had enough room to turn. I looked both ways before I started to go.

Q: Did you see the other vehicle before the impact?

A: Not until right before it hit. It came in from the side fairly fast, and I tried to speed up a little, but there wasn't time.

Q: Were you wearing your seatbelt?

A: Yes, I was.

Q: Did the airbags deploy in your vehicle?

A: No, they did not. The impact jolted me forward and then back against the seat.

Q: Have you sought medical attention since the accident?

A: Yes. I went to the urgent care clinic that same afternoon. My lower back has been sore and stiff, and the doctor said it looks like a back strain. I've been taking the medication they prescribed and trying to rest.

Q: Are you still experiencing pain today?

A: Yes, it's mostly in my lower back, and it gets worse when I sit for a long time or try to lift something heavy.

Q: Is there anything else you'd like to add about the accident?

A: I just want to make sure it's clear that I checked for traffic before turning. I'm hoping this gets sorted out quickly so I can get back to normal.

Q: Thank you. That concludes the statement.